

Court No. - 49

Case :- APPLICATION U/S 482 No. - 6194 of 2010

Petitioner :- Ashok Kumar Dureja

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Chetan Chatterji,Pranjal Mehrotra

Respondent Counsel :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Rajesh Dayal Khare,J.

Heard learned counsel for the applicant, Sri Ram Kumar Sharma holding brief of Sri Pankaj Kumar Shukla learned counsel for the opposite party no.2 and the learned AGA for the State-respondent.

The present 482 Cr.P.C. petition has been filed for quashing the proceedings of Special Sessions Trial No.78 of 2006, under Section 135 of Electricity Act, pending before the Special Judge, E.C. Act, district Moradabad.

It is contended by the learned counsel for the applicant that the sole allegation against the applicant is that the seal of the meter was found tampered. Learned counsel for the applicant states that as per the provisions of Clause 8.1(b)(ii) of Electricity Supply Code, 2005, no theft case shall be booked for mere breakage of window glass or old seal of the energy meter. It is thus contended that pursuant to the aforesaid provisions of the Electricity Supply Code, 2005, no first information report could have been lodged against the applicant. It is next contended that the first information report was lodged by the Junior Engineer when in fact as per the the Government Order No.2635/24-P-3-204 dated 5th October 2004 only the Assistant Engineer is competent to lodge the first information report under Section 135 of the Electricity Act.

Sri Ram Kumar Sharma prays for and is granted two weeks time to file counter affidavit. As prayed by the learned counsel for the applicant one week thereafter is granted for filing rejoinder affidavit.

Till the next date of listing, no coercive action shall be taken against the applicant in the aforesaid case.

Order Date :- 12.3.2010

Hasnain

Court No. - 78

Case :- APPLICATION U/S 482 No. - 6194 of 2010

Applicant :- Ashok Kumar Dureja

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Chetan Chatterji,Pranjal Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Anil Kumar-IX,J.

Case called out in the revised list. None is present for the applicant and opposite party No.2.

The application is dismissed for non prosecution. Interim order granted earlier is vacated.

Let a copy of this order be sent to the Court concerned for information.

Order Date :- 28.11.2019

L.F./22

Court No. - 77

Case :- APPLICATION U/S 482 No. - 6194 of 2010

Applicant :- Ashok Kumar Dureja

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Chetan Chatterji,Pranjal Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Pankaj Bhatia,J.

As prayed, list this case on 15.2.2021, in the additional cause list.

Order Date :- 8.2.2021

S. Rahman

Court No. - 77

Case :- APPLICATION U/S 482 No. - 6194 of 2010

Applicant :- Ashok Kumar Dureja

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Chetan Chatterji,Pranjal Mehrotra

Counsel for Opposite Party :- Govt.
Advocate,Pankaj Kumar Shukla

Hon'ble Pankaj Bhatia,J.

On the request made by counsel for the applicant, put up this matter on 19.2.2021 in the additional cause list.

Order Date :- 17.2.2021

Puspendra

Court No. - 77

Case :- APPLICATION U/S 482 No. - 6194 of 2010

Applicant :- Ashok Kumar Dureja

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Chetan Chatterji,Pranjal Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Pankaj Bhatia,J.

Order on Criminal Misc. Restoration Application No. 2 of 2021 filed alongwith Criminal Misc. Delay Condonation Application No. 1 of 2021:-

The cause shown for the delay in filing the restoration application is found to be sufficient.

The delay is condoned.

Case shown in the restoration application seeking recall of the order dated 28.11.2019 is sufficient. The order dated 28.11.2019 is recalled.

The application is restored to its original file and number.

The interim order granted earlier shall continue till the next date of listing.

Order on Application U/S 482:-

List after four weeks.

Order Date :- 19.2.2021

AKT

Court No. - 88

Case :- APPLICATION U/S 482 No. - 6194 of 2010

Applicant :- Ashok Kumar Dureja

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Chetan Chatterji, Anil Kumar

Mehrotra, Pranjal Mehrotra, Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate, Pankaj Kumar Shukla

Hon'ble Sanjay Kumar Pachori, J.

None for the applicant as well as private opposite party no.2 even when the case is called in revised list.

Learned A.G.A. for the State is present.

In the interest of justice, list this case on 31.01.2024.

Order Date :- 19.1.2024

A. Tripathi



2025:AHC:194015

HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 482 No. - 6194 of 2010

Ashok Kumar Dureja

.....Applicant(s)

Versus

State of U.P. and Another

.....Opposite
Party(s)

Counsel for Applicant(s) : Anil Kumar Mehrotra, Pranjal
Mehrotra, Srijan Mehrotra
Counsel for Opposite Party(s) : Pankaj Kumar Shukla

Court No. - 84

HON'BLE PADAM NARAIN MISHRA, J.

1. List revised.
2. None present for the applicant to press the present application.
However, learned AGA is present.
3. The present application U/s 482 Cr.P.C. is dismissed for want of prosecution.
4. Interim order, if any, stands vacated.

(Padam Narain Mishra,J.)

November 3, 2025

v.k. updh.